

M/s Raj Ratan Smelter Limited v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 23 October 2019 · Writ-C No. 33494 of 2019 · **Writ dismissed; recovery citation for electricity dues upheld.**

HEADNOTE

A writ to quash a recovery citation for electricity dues was dismissed. The consumer's own letter established service of the demand notice under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. Alleged want of particulars in the bills is to be raised by application under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A dispute over interest on security deposit does not vitiate the demand or recovery; such adjustment is recurring and may be made in future bills, with liberty to represent to the Executive Engineer.

FACTUAL SUMMARY

Raj Ratan Smelter Limited challenged Dakshinanchal Vidyut Vitran Nigam's recovery citation of 21 August 2019 for Rs. 1.30 crore electricity dues. It alleged no demand notice under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958, incomplete bills, and non-adjustment of interest on a Rs. 53 lakh security deposit. Its letter of 6 August 2019 acknowledged demand notice no. 4489 dated 5 July 2019 for Rs. 1.84 crore; the licensee showed Rs. 3,21,975 interest already adjusted in the July 2018 bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute and recovery citation

HOLDING

Where electricity bills are said to be incorrect or to lack relevant details, that complaint is not a ground to quash a recovery citation in writ jurisdiction; the consumer's remedy is an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A plea that interest on security deposit has not been properly adjusted does not vitiate the demand notice or the recovery, such adjustment being of a recurring nature and capable of being made in future bills. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INTEREST ON THE SECURITY DEPOSIT REMAINS UNDER-ADJUSTED IN ANY PARTICULAR BILL

Liberty to represent to the Executive Engineer for factual consideration; does not affect demand or recovery. ¶ 6